

HOUSE BILL 1689

By Freeman

AN ACT to amend Tennessee Code Annotated, Title 6;
Title 7; Title 16; Title 40 and Title 55, Chapter 10,
Part 5, relative to drag racing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-10-502, is amended by adding the following as a new subsection (d):

(1) In addition to the seizure and forfeiture provisions under subsection (c), a POST-certified or state-commissioned law enforcement officer with probable cause to believe that a motor vehicle has been used in drag racing may seize and impound the motor vehicle pending further administrative or judicial review.

(2) Impoundment of a vehicle described in subdivision (d)(1) is limited to a maximum of seventy-two (72) hours, during which the impounding authority must notify the vehicle's owner or any known lienholder in writing. The notice must include the reasons for impoundment, and the owner has the right to request an administrative hearing, if applicable, or to petition the general sessions court for a judicial hearing.

(3) If an administrative hearing or hearing before the general sessions court is requested or petitioned pursuant to subdivision (d)(2), then the hearing must be held within five (5) business days of the request or petition, whereupon the owner may contest the seizure. If probable cause is not substantiated, then any impoundment fees paid by the owner must be reimbursed or the vehicle must be immediately released to the owner at no cost if the vehicle is still impounded at the time of the hearing.

(4) This subsection (d) does not affect or supersede state seizure and forfeiture under subsection (c) and title 40, chapter 33, part 1. A vehicle subject to impoundment may still be seized and forfeited upon conviction.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.